

# The U.P. Board of Revenue (Regulation of Procedure) Act, 1966

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State of Uttar Pradesh - Act

The U.P. Board of Revenue (Regulation of Procedure) Act, 1966

UTTAR PRADESH

India

The U.P. Board of Revenue (Regulation of Procedure) Act, 1966

Act 32 of 1966

Published on 31 December 1966

Commenced on 31 December 1966

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The U.P. Board of Revenue (Regulation of Procedure) Act, 1966

(U.P. Act

No. 32 of 1966

)

(As passed by Uttar Pradesh Vidhan Mandal)

The Act received the assent of the Governor on 31st December, 1966 and was published in U.P. Gazette, Extraordinary, dated 31st December, 1966.

An Act of the U.P. Land Revenue Act 1901 (U.P. Act No. III of 1901) for the purposes hereinafter appearing and repeal the U.P. Board of Revenue (Declaration of Procedure and validation) Act, 1953 (U.P. Act, No. XXX of 1953).

It is hereby enacted in the Seventeen Years of the Republic of India as follows :-

1.

Short title.

- This Act may be called the Uttar Pradesh Board of Revenue (Regulation of Procedure) Act, 1966.

2.

Substitution of new sections for sections 7 and 8 of U.P. Act No. III of 1901.

- For sections 7 and 8 of the U.P. Land Revenue Act, 1901, the following sections shall be substituted, namely:-

7.

Power to distribute business. - (1) Subject to the provisions of any rules made under this Act, and of section 8, the Board may so distribute its business and make such territorial division of its jurisdiction amongst its members as it thinks fit.

(2)

Without prejudice to the generality of the foregoing power, the Board may in particular and subject as aforesaid regulate disposal of its judicial business by its members sitting alone or in Division Benches.

8.

Decision when case heard by Division Bench. - (1) Where a judicial proceeding coming under the consideration of the Board on appeal or reference or in revision is heard by a Division Bench composed of two or more members, the case shall be decided in accordance with the opinion of such members or of the majority, if any, of such members.

(2)

Where the members constituting the Bench are equally divided in opinion as to the decision to be given on any point, the case shall be heard upon such point by one or more of other members and the point be decided according to the opinion of the majority of the members who have heard the case including those who first heard it.

3.

Repeal and saving.

(1)

The U.P. Board of Revenue (Declaration of Procedure and Validation) Act, 1953 (U.P. Act No. XXX of 1953), hereinafter in this section referred to as the said Act, is hereby repealed.

(2)

Without prejudice to the generality of the provision of section 6 of the U.P. General Clauses Act, 1904 the repeal of the said Act shall not affect the validity of any judicial judgment referred to in section 3 of the said Act, made, pronounced in or anything done in pursuance of such judgment.

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